

Rajasthan Chief Electrical Inspector and Electrical Inspectors (Powers and Functions) Rules, 2016

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Rajasthan Chief Electrical Inspector and Electrical Inspectors (Powers and Functions) Rules, 2016

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Rajasthan Chief Electrical Inspector and Electrical Inspectors (Powers and Functions) Rules, 2016

Rule

RAJASTHAN-CHIEF-ELECTRICAL-INSPECTOR-AND-ELECTRICAL-INSPECTORS-POWERS-AND-FUNCTIONS-RULES-2016 of 2016

Published on 28 March 2016

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Rajasthan Chief Electrical Inspector and Electrical Inspectors (Powers and Functions) Rules, 2016

Published vide Notification No. G.S.R. 164, dated 28.3.2016

G.S.R. 164. - In exercise of the powers conferred by clause (o) of sub-section (2) of Section 180 of the Electricity Act, 2003 (Central Act No. 3G of 2003), the State Government hereby makes the following rules, namely: -

1.

Short title, commencement and applicability.

(1)

These rules may be called the Rajasthan Chief Electrical Inspector and Electrical Inspectors (Powers and Functions) Rules, 2016.

(2)

They shall come into force at once.

(3)

These rules shall apply to the whole of the State of Rajasthan in respect of any electrical work or electrical installations other than the works installations belonging to or under the control of the Central Government.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires, -

(a)

"Act" means the Electricity Act, 2003 (Central Act No. 36 of 2003);

(b)

"Appellate Authority" in respect of an appeal against the order of Senior Electrical Inspector or Electrical Inspector or Assistant Electrical Inspector, means the Chief Electrical Inspector and in respect of an appeal against the order of the Chief Electrical Inspector means the Government of Rajasthan;

(c)

"Inspector" means Senior Electrical Inspector, Electrical Inspector and Assistant Electrical Inspector of the Electrical Inspectorate Department of Government of Rajasthan; and

(d)

"Regulation" means the Central Electricity Authority (Measures relating to Safety and Electric Supply) Regulations, 2010, as amended from time to time.

(2)

Words and expressions used but not defined in these rules shall have the same meanings as assigned to them in the Act.

3.

Powers of the Chief Electrical Inspector and Inspectors.

- The Chief Electrical Inspector and Inspectors shall have the powers to inspect all the electrical works and electrical installations in the area in respect of which, the Chief Electrical Inspector and Inspectors have been directed by the Government to exercise the powers and perform the functions under sub-section (1) of Section 162 of the Act and under Regulation 30 and Regulation 43 of the Central Electricity Authority (Measures relating to Safety and Electric Supply) Regulations, 2010, as amended from time to time.

4.

Officers to assist the Chief Electrical Inspector and Inspectors.

- The Chief Electrical Inspector and Inspectors may be assisted by such officers, as may be appointed by the Government, from time to time.

5.

Powers of entry and inspection.

(1)

The Chief Electrical Inspector or Inspectors or any officer appointed to assist the Chief Electrical Inspector and Inspectors under Rule 4 of these rules may enter, inspect and examine any place, carriage or vessel in which he has reason to believe that there is any appliance or apparatus used in the generation, transmission, transformation, conversion, distribution or use of energy and may carry out test therein.

(2)

Every licensee, consumer, owner and occupier shall afford at all times all reasonable facilities to any such Inspector or officer to make such examinations and test as may be necessary to satisfy himself as to the due observance of the safety regulations as specified by the Central Electricity Authority in relevant regulations.

(3)

Every licensee and every owner of a generating station shall, if required so to do by an Chief Electrical Inspector or an Inspector or any officer appointed to assist him, provide reasonable means for carrying out all tests, specified under the

Act or regulations made there under, of the appliances or apparatus used for the supply or use of energy by him, as the case may be.

(4)

Chief Electrical Inspector or an Inspector may serve an order of such inspection to any licensee, consumer, owner or occupier, directing him to comply with the specified rule or regulation and the person so served shall thereupon comply with the order within a period of 45 days, and report in writing to the Inspector:

Provided that, if within the period specified in the aforesaid order, an appeal is filed against the order by the person on whom such order has been served, the appellate authority may suspend the operation of the order pending the decision of the appeal.

In the event of the failure of the owner of any installation to rectify the defects in the installation, pointed out by the Inspector or by any officer appointed to assist him, within the period as specified in this rules, such installation shall be liable to be disconnected under the directions of the Inspector after serving upon the owner of such installation a notice of not less than seven days:

Provided that the installation shall not be disconnected in case an appeal is made against the notice within the period specified above and the appellate authority has suspended its operation pending the decision of the appeal.

(6)

The inspector, after receiving intimation from the owner about the rectification of defects, shall be carried out by at least two Inspectors, provided for the electrical installations with voltage upto the notified voltage, if the self-certificate is issued by the Owner in assistance of Chartered Safety Engineer regarding the rectification of defects than no further inspection is required by Inspector.

(7)

anything contained in these rules, the consumer shall at all times be solely responsible for the maintenance of his installation in such condition as to be free from danger.

6.

Submission of records.

- The Chief Electrical Inspector or an Inspector or any officer appointed to assist him may require a licensee or an owner to submit any records of tests made in connection with his electrical works. The licensee or owner shall comply with such requisition.

7.

List of consumers.

- The Chief Electrical Inspector or an Inspector or any other officer appointed to assist him may require the licensee to submit a list of all persons to whom he supplies energy, the addresses at which the energy is supplied, the date of connecting services, the voltage of supply, the connected load and the purpose of supply and the name of contractor carrying out the installation work. The licensee shall be bound to provide the required information.

8.

Fees of inspection and other services.

(1)

The fee for testing and inspection and generally for the services of Inspectors or any other officer appointed to assist him shall be such as may be specified by the Government, from time to time.

(2)

Fee for every inspection under the Central Electricity Authority (Measures relating to Safety and Electric Supply) Regulations, 2010 shall be payable by the owner of the installation in advance and in the event of failure of payment of fee the electric supply to such installation shall be liable to be disconnected under the direction of the Inspector. Such disconnection, however, shall not be made by the licensee without giving to the consumer seven clear days notice in writing of his intention to do so.

9.

Appeal.

(1)

An appeal, against an order served by the Chief Electrical Inspector or an Inspector under these rules, shall lie to Appellate Authority.

(2)

Every appeal made under sub-rule (1) shall be in writing and be accompanied by a copy of the order appealed against and shall be preferred within three months from the date on which such order has been served or delivered, as the case may be.

(3)

An appeal shall be disposed off within ninety days from the date of receipt of the appeal.

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